

26STCV11336 26STCV11336

County: los-angeles

Division: Civil Law and Motion

Department: 408

Hearing date: 2026-09-16

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C408%2C09%2F16%2F2026

Source SHA-256: 985f4500a6e4a7b73a85f1c4035b46ef6e99e75b217b92e30168468d4e6efb6a

Case Number: 26STCV11336 Hearing Date: September 16, 2026 Dept: 408

Defendants The Kroger Co. and Ralphs

Grocery Company's Demurrer to Plaintiff Derrick Holmes' First Amended Complaint

is SUSTAINED as to the ninth cause of action. The court will inquire whether leave to amend should be granted at the hearing.

I.

BACKGROUND

On April 8, 2026, Plaintiff Derrick Holmes ("Plaintiff") filed a complaint against Defendants The Kroger Co. ("Kroger") and Rocio Quiroga ("Quiroga") alleging causes of action for:

1.

Violation

of Labor Code section 1102.5;

2.

Wrongful

Termination in Violation of Public Policy;

3.

Discrimination

on the Basis of Disability/Perceived Disability/Medical Condition;

4.

Retaliation

in Violation of the California Family Rights Act;

5.

Violation

of the California Family Rights Act Rights;

6.

Failure

Timely to Provide Personnel Records;

7.

Failure

Timely to Provide Payroll Records;

8.

Retaliation

in Violation of FEHA;

9.

Failure

to Investigate Discrimination and Retaliation in Violation of California
Government Code section 12940(J);

10. Failure to Correct

and Remedy Discrimination in Violation of California Government Code section
12940(K); and

11. Intentional

Infliction of Emotional Distress.

On May 8, 2026, Plaintiff filed an Amendment to the Complaint naming Doe
1 as Ralphs Grocery Company ("Ralphs").

On May 11, 2026, Plaintiff filed a First Amended Complaint ("FAC")
alleging causes of action for:

1.

Violation

of Labor Code section 1102.5;

2.

Wrongful

Termination in Violation of Public Policy;

3.

Discrimination

on the Basis of Disability/Perceived Disability/Medical Condition;

4.

Retaliation

in Violation of the California Family Rights Act;

5.

Violation

of the California Family Rights Act Rights;

6.

Retaliation

in Violation of FEHA;

7.

Failure

to Investigate Discrimination and Retaliation in Violation of California
Government Code section 12940(J);

8.

Failure

to Correct and Remedy Discrimination in Violation of California Government Code
section 12940(K); and

9.

Intentional

Infliction of Emotional Distress.

On June 8, 2026, pursuant to the parties' stipulation, Quiroga was
dismissed without prejudice.

On June 9, 2026, Kroger and Ralphs ("Defendants") filed this Demurrer to
Plaintiff's FAC. On September 2, 2026, Plaintiff filed an opposition. On
September 9, 2026, Defendants filed a reply.

II.

LEGAL STANDARD

“The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of” various grounds listed in statute. (Code Civ. Proc., § 430.10.)

When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (*Ibid.*) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Id.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245.)

III.

DISCUSSION

Defendants

demur to the ninth cause of action for intentional infliction of emotional distress alleged in Plaintiff's FAC pursuant to Code of Civil Procedure section 430.10, subdivision (e), on the grounds that Plaintiff fails to state sufficient facts to constitute such cause of action and the claim is barred by the workers' compensation exclusivity doctrine.

“The elements of a prima facie case for the tort of intentional infliction

of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." (Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009 [citation and ellipses omitted].)

Defendants

argue that Plaintiff fails to allege any conduct that was extreme or outrageous to support an intentional infliction of emotional distress claim. (Demurrer, at pp. 5-8.) Defendants also argue that the Workers' Compensation Act is the exclusive statutory remedy for emotional distress claims. (Id., at pp. 8-9.)

The

FAC alleges that Plaintiff began working for Defendants on September 24, 2014, as General Help in the Milk Production Department. (FAC, ¶ 12.) In February 2023, Plaintiff suffered from a sudden medical episode, presenting boils on his upper buttock. (Id., ¶ 14.) After consulting with his doctor, Plaintiff was placed on disability leave due to perirectal abscess which was later extended due to complications. (Ibid.) On April 4, 2023, Plaintiff was scheduled for surgery in six weeks. (Ibid.) However, Plaintiff was unable to undergo surgery as Kroger cancelled his health insurance while on medical leave. (Ibid.) On May 12, 2023, Plaintiff was again scheduled for surgery for May 25, 2023. (Ibid.) On May 25, 2023, Plaintiff had a fistulotomy surgery. (Ibid.) Following his surgery, Plaintiff remained on leave with a return to work date in September 2023. (Ibid.) In July 2023, a new fistula was discovered, requiring further treatment and surgery for Plaintiff. (Ibid.) Defendants terminated Plaintiff's insurance which prevented Plaintiff from receiving a second surgery. (Ibid.) The FAC alleges that Plaintiff was forced to return to work on October 1, 2023, without obtaining the necessary medical treatment. (Ibid.) On November 8, 2023, Plaintiff had his second surgery. (Ibid.) On February 28, 2024, Plaintiff was cleared to return to work on March 18, 2024, without restrictions. (Id., ¶ 15.) During Plaintiff's first day back to work on March 20, 2024, Plaintiff was placed on a graveyard shift without training. (Id., ¶ 16.) On March 21, 2024, Defendants suspended Plaintiff pending investigation. (Id., ¶ 17.)

On May 6, 2024, Defendants terminated Plaintiff based on alleged pretextual reasons. (Id., ¶ 18.)

In support of the ninth cause of action, the FAC alleges that Defendants' conduct toward Plaintiff was outrageous as Defendants retaliated against Plaintiff, including subjecting Plaintiff to a hostile work environment, ridicule, false accusations, harassment, and other acts of continuing retaliation causing Plaintiff's emotional distress. (Id., ¶¶ 78-81.)

As an initial matter, the court finds that Plaintiff's intentional infliction of emotional distress claim is not barred by the Worker's Compensation Act as it is based on alleged discrimination, harassment, and retaliation due to Plaintiff's disability. In general, worker's compensation is the exclusive remedy "if the injuries did arise out of and in the course of the employment... notwithstanding that the injury resulted from the intentional conduct of the employer, and even though the employer's conduct might be characterized as egregious." (Shoemaker v. Myers (1990) 52 Cal.3d 1, 15.) "So long as the basic conditions of compensation are otherwise satisfied, and the employer's conduct neither contravenes fundamental public policy nor exceeds the risks inherent in the employment relationship, an employee's emotional distress injuries are subsumed under the exclusive remedy provisions of workers' compensation." (Livitsanos v. Superior Court (1992) 2 Cal.4th 744, 754 [internal citations omitted].) However, "unlawful discrimination and retaliation in violation of FEHA falls outside the compensation bargain and therefore claims of intentional infliction of emotional distress based on such discrimination and retaliation are not subject to workers' compensation exclusivity." (Light v. Department of Parks & Recreation (2017) 14 Cal.App.5th 75, 101; Murray v. Oceanside Unified School Dist. (2000) 79 Cal.App.4th 1338, 1363 ["[W]here a plaintiff can allege that she suffered emotional distress because of a pattern of continuing violations that were discriminatory, her cause of action for infliction of emotional distress will not be barred by the exclusivity provisions of workers' compensation laws."].)

However, the court finds that Plaintiff fails to allege sufficient facts to demonstrate Defendants' purported extreme and outrageous conduct. Beyond the allegation that Defendants canceled Plaintiff's medical insurance and terminated his employment, Plaintiff does not allege any other conduct by Defendants that would "exceed all bounds of that

usually tolerated in a civilized community.” (FAC, ¶ 14-18; Wilson, supra, 207 Cal.App.4th at 1009.) Plaintiff’s conclusory allegations that Defendants’ conduct was extreme and outrageous is insufficient to support an intentional infliction of emotional distress claim.

The demurrer is sustained as to the ninth cause of action.

IV.

CONCLUSION

Defendants The Kroger Co. and Ralphs Grocery Company’s Demurrer to Plaintiff Derrick Holmes’ First Amended Complaint is SUSTAINED as to the ninth cause of action. The court will inquire whether leave to amend should be granted at the hearing.